

GOVERNMENT OF ANDHRA PRADESH

ABSTRACT

PUBLIC SERVICES -Andhra Pradesh Civil Services (Classification, Control and Appeal) Rules, 1991 - Departmental Proceedings arising out of caught red handed cases undertaken by the Anti - Corruption Bureau – New Timeline of 100 days prescribed for concluding the disciplinary proceedings by all Government Departments - Orders – Issued.

GENERAL ADMINISTRATION (Ser.C) DEPARTMENT

G.O.MS.No. 41

Dated: 18-04-2021.

Read the following:-

1. AP Civil Services (CC & A) Rules, 1991 issued vide G.O.Ms.No.487, G.A.(Ser.C) Dept., dt.14.9.1992.
2. G.O.Ms.No.421, G.A. (SC-D) Dept., dt.3.8.1993.
3. Memo.No.35676/Ser.C/98, G.A. (Ser.C) Dept. dt.1.7.1998.
4. Memo.No.177/Spl.C./2003-1, G.A. (Spl.C) Dept., dt.13.5.2003.
5. Memo.No.77/Spl.C/A1/2011, G.A. (Spl.C) Dept., dt.10.3.2011.

ORDER

The Government of Andhra Pradesh have taken up several welfare and development initiatives on a massive scale for the betterment of all the sections of people in the State. A number of programmes on an unprecedented scale have been taken up under “Navaratnalu” to deliver the required services at the doorsteps of the people in a transparent and corruption free manner. Gram / Ward Volunteers and Village / Ward Secretariat system in the State has been established to play the role of an accessible and transparent delivery mechanism for all the services required at the village/ward level. The Hon’ble Chief Minister has reiterated the government’s commitment to corruption-free administration on a number of occasions and accordingly a number of initiatives have been launched towards this goal.

2. The Anti-Corruption Bureau in Andhra Pradesh came into existence on 2.1.1961 as a separate Department to check effectively the evil of corruption in the services and to improve the moral tone of the administration in the State. However, this laudable objective does not seem to have been fulfilled completely. The status of cases pending in ACB since 1995 is as follows:

Sl.No.	Years	Caught red handed cases-numbers	Total including caught red handed cases
1	1991-1995	3	30
2	1996-2000	2	36
3	2001-2005	1	5
4	2006-2010	158	378
5	2011-2015	161	740
6	2016-2020	151	497
	Total	476	1686

3. In the above mentioned context, it has been noticed that disciplinary proceedings arising out of caught red handed cases by Anti-Corruption Bureau(ACB) are taking unduly long time for their conclusion. As a result, a large number of such cases are found to be pending and the time taken for disposal of these disciplinary cases is unduly long in almost all cases. Such unacceptable delay in finalisation of the disciplinary cases results in a large number of employees remaining under suspension and drawing full/part salaries without turning out any work-thus proving to be a burden on the public exchequer. Such undue delay also

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leads to dilution of fear of quick punishment in the minds of the officials indulging in corrupt practices. Entire purpose of having a deterrent tool in the shape of Anti-Corruption Bureau gets defeated. Therefore, there is a need to reduce the time period for finalisation of Disciplinary cases, in order to ensure that there is a deterrent fear of law amongst the Government officials and the tendency of indulging into corrupt practices is nipped in the bud.

4. The present timelines prescribed in the APCS (CC & A) Rules, 1991 and other instructions of the Government issued from time to time, from the stage of initiation to conclusion of disciplinary proceedings arising out of caught red handed cases is as follows:-

Table A

Sl. No.	Process	Timeline	Provision
1	Caught red handed by the Anti-Corruption Bureau	Day - 1	Chapter VII (78 to 107) of the ACB Manual
2	Arrest of the Officer caught red handed by the ACB and his production before ACB Court	within 24 hours. (Day - 2)	Sections 41,46,47,48,51,52,57 of the Cr.P.C., Article 22 of the Constitution of India
3	ACB to furnish the Radio Message to APVC and concerned HoD/ Government with intimation of the detention of the Accused Officer (AO) for suspension	within 24 hours of caught red handed	Memo.No.177/ Spl.C/2003-1, dt.13-5-2003, G.A. (Spl.C) Dept.
4	On receipt of the radio message of ACB arresting the officer, Accused Officer is suspended by the competent authority	Timeline not specified	Rule 8(1) of AP Civil Services (CC & A) Rules, 1991
5	Submission of final report by the ACB to Government Department.	3 months	Memo No.700/SC.D/88-4, Genl. Admn. (SC.D) Dept., dt.13.02.1989
6	The Department along with the remarks requests the APVC for its advice on the final report of the ACB	21 days	G.O.Ms.No.421, G.A. (SC.D) Dept., dt.03.08.1993.
7	APVC gives its advice to the Department on the final report of the ACB		
8	Based on the advice of the APVC, Prosecution is sanctioned by the Competent Authority or Departmental Action is initiated or both actions are taken	45 days	Memo.No.77/Spl.C/A1/2011, G.A. (Spl.C) Dept., dt.10.03.2011
- After sanction of Prosecution order issued by the Competent Authority, the criminal proceedings are taken up further by ACB - For Departmental action, the following procedure is further prescribed:			
9	For departmental action, department requests the ACB to furnish DRAFT Article of Charges	No timeline specified	
10	On receipt of the Article of charges from ACB, the Competent Authority serves the article of charges on the delinquent officer to submit his statement of defense	No timeline specified	Rule 20 of the AP CS(CC&A) Rules, 1991
11	Delinquent Officer has to submit his Statement of Defense to the Competent Authority	10 days	Rule 20(4) of the AP CS(CC&A) Rules, 1991.

12	After examination of the statement of defense, the Competent Authority (CA) appoints Inquiry Authority (IA)	No timeline specified	Rule 20(2) of the AP CS(CC&A) Rules, 1991.
13	Inquiry Authority to complete the Inquiry and submit his report to CA	3 Months	Memo.No.35676/Ser.C/98, G.A. (Ser.C) Dept., dt.01.07.1998.
14	Report of the IA to be communicated to the Delinquent Officer by the Competent Authority to submit his Written Statement of Defense	No timeline specified	
15	Delinquent Officer to submit his Written Statement of Defense to Competent Authority	15 days	Rule 21(2) of the AP CS (CC&A) Rules, 1991.
16	Department furnishes the Inquiry Authority report to APVC for advice	No timeline specified	
17	APVC furnish advice to the Department		
18	Competent Authority after going through the Inquiry Authority report, written statement of defense and advice of the Vigilance Commission takes a decision to impose Minor/Major Penalty and conclude the proceedings. Imposition of Major Penalty consultation with APPSC	No timeline specified	Rule 22 of the AP CS(CC&A) Rules, 1991.
19	Advice of the Service Commission		
20	Communication of Order of the Competent Authority to the Delinquent Officer	No timeline specified	Rule 23 of AP CS(CC&A) Rules, 1991.

5. As can be seen from the above table (Table A), much of the delay caused in the present system can be attributed to the impractically / unwantedly long timelines prescribed for many processes along with prescribing no timeline at all for a few other processes.

6. A committee of officers consisting of Chief Commissioner of Land Administration, Principal Secretary to Government, Village & Ward Secretariat and Village / Ward Volunteers, Secretary to Government, MA&UD, Secretary to Government, PR&RD, Secretary to Government, G.A(Services) and DG, ACB have studied the subject and recommended a revised timeline for early completion of the disciplinary proceedings without diluting the principles of natural justice and fair play.

7. Government, after careful examination of the matter, prescribe the following revised timelines for speedy disposal of the disciplinary cases arising out of caught red handed cases undertaken by the ACB.

Table B

Sl. No	Process	Timeline	Provision
1	Caught red handed by the Anti-Corruption Bureau	Day - 1	Chapter VII (78 to 107) of the ACB Manual

2	Arrest of the Officer caught red handed and his production before ACB Court. ACB to furnish the Radio Message to APVC and concerned HoD/ Government with intimation of the detention of the Accused Officer for suspension	within 24 hours. (Day - 2)	Sections 41,46,47,48,51,52,57 of the Cr.P.C., Article 22 of the Constitution of India Memo.No.177/ Spl.C/2003-1, G.A. (Spl.C) Dept., dt.13-5-2003.
3	On receipt of the radio message of ACB arresting the officer, the Accused Officer may be placed under suspension by the competent authority	2 days	Rule 8(1) of the AP Civil Services (CC&A) Rules, 1991
4	Submission of final report by ACB to Government Department along with Articles of Charges	30 days	Memo.No.177/ Spl.C/2003-1, G.A. (Spl.C) Dept, dt.13-5-2003.
5	The Department along with their remarks requests the APVC for its advice on the final report of the ACB	3 days	G.O.Ms.No.421, G.A. (SC.D) Dept., dt.03.08.1993. (Amendment is required to the above GO.)
6	APVC gives its advice to the Department on the final report of the ACB	3 days	
7	Based on the Advice of the APVC, Prosecution is sanctioned by the Competent Authority or Departmental Acton or Both.	4 days	Memo.No.77/Spl.C/A1/2011, G.A.(Spl.C) Dept, dt.10.03.2011 (Amendment is required to the above Memo.)
After sanction of Prosecution order issued by the Competent Authority, the criminal proceedings are taken up further by Anti-Corruption Bureau. For Departmental action, the following procedure is further prescribed:			
8	On receipt of the Article of charges, the Competent Authority serves the article of charges on the delinquent officer to submit his statement of defense	2 days	Rule 20 of the AP CS(CC&A) Rules, 1991.
9	Delinquent officer has to submit his Statement of Defense	7 days	Rule 20(4) of the AP CS(CC&A) Rules, 1991.
10	After examination of the Statement of Defense, the Competent Authority (CA) appoints Inquiry Authority (IA) and Presenting Officer	2 days	Rule 20(2) of the AP CS(CC&A) Rules, 1991 and Rule 20 (5) (c) of the AP CS(CC&A) Rules, 1991.
11	Inquiry Authority to complete the Inquiry and submit his report to Competent Authority	21 days	Memo.No. 35676/Ser.C/98, G.A.(Ser.C) Dept., dt.01.07.1998. (Amendment is required to the above Memo.)
12	Report of the Inquiry Authority to be communicated to the Delinquent Officer to submit his Written Statement of Defense	2 days	Rule 21(1 A) of the AP CS(CC&A) Rules, 1991.
13	Delinquent Officer to submit his Written Statement of Defense to Competent Authority	7 days	Rule 21(1 A) of the AP CS(CC&A) Rules, 1991. (Amendment is required to the above Rule.)
14	Department furnishes the Inquiry Authority report to APVC for remarks.	2 days	

15	APVC gives its advice on the enquiry authority report	3 days	
16	Competent Authority after going through the Inquiry Authority report, written statement of defense and advice of the Vigilance Commission takes a decision to impose Minor/Major Penalty and conclude the proceedings. For imposition of Major Penalty, consultation with APPSC is required.	3 days	Rule 22 of the AP CS(CC&A) Rules, 1991.
17	Department to consult the APPSC on the imposition of Major Penalty	2 days	As per Regulation 17 of Andhra Pradesh Public Service Commission Regulation 1963, before a major penalty on Delinquent Government employees in disciplinary cases.
18	APPSC forwards its advice to the Administrative Department	3 days	
19	Communication of Order of the Competent Authority to the Delinquent Officer	2 days	Rule 23 of the AP CS(CC&A) Rules, 1991.

Total 100 days

8. All the Departments of Secretariat/Heads of Departments and Director General, Anti-Corruption Bureau shall adhere to the timelines as stipulated above, while concluding the disciplinary proceedings arising out of caught red handed cases undertaken by the ACB. It is further reiterated that Disciplinary proceedings should be conducted in parallel/simultaneously with the criminal proceedings and it should not wait for the outcome of the criminal proceedings.

9. Failure to conclude the disciplinary proceedings within 100 days or failure to follow the above prescribed timelines by the Departments, competent authorities and Anti Corruption Bureau (ACB) shall be viewed seriously by the Government and disciplinary action shall be taken against the concerned, responsible for the delay.

10. Necessary amendments/modifications in rules and instructions shall be taken by the concerned department as shown below:

Department concerned	Action/Amendment
Prl. Secy. (Political), GAD	G.O.Ms.No.421, G.A.(SC-D) Dept., dt.03.08.1993. (Amendment is required to the above GO)
	Memo No.77/Spl.C/A1/2011, G.A.(Spl.C) Dept., dt.10.03.2011 (Amendment is required to the above Memo.)
Secretary (Services)	Rule 20, 20 (2), 20 (4), 21 (1) (A), 22 and 23 of AP CS(CC&A) Rules 1991
	Memo.No.35676/Ser.C/98, G.A.(Ser.C) Dept., dt. 01.07.1998. (Amendment is required to the above Memo.)

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All Secretaries/Heads of Departments/and other Competent Authorities	To take action to notify the designation of officers to be appointed as Inquiry Officers & Presenting Officers in the event of caught red handed cases against officers holding different categories.
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(BY ORDER AND IN THE NAME OF THE GOVERNOR OF ANDHRA PRADESH)

ADITYA NATH DAS
CHIEF SECRETARY TO GOVERNMENT

To
All the Departments of Secretariat.
All the Heads of Departments in the State.
The Prl.Secretary to Govt. (Poll), GAD.
The Director General, ACB, Vijayawada.
All the District Collectors in the State.
The Vigilance Commissioner, APVC, AP Secretariat, Velagapudi.
The G.A.(SC.D/SC.F) Department.
Copy to:-
The PS to Chief Secretary.
The PS to the Principal Secretary to Chief Minister.
The PS to Prl.Secretary to Govt. (Services), GAD.
The Law (C) Department.
SF/SC.

// forwarded by order //

SECTION OFFICER